FULL TEXT OF MEASURE M

RESOLUTION NO. 101-2026 OF THE BOARD OF SUPERVISORS OF THE COUNTY OF EL DORADO

SETTING FOR MAILED BALLOT ELECTION A MEASURE TO IMPOSE A SPECIAL TAX FOR THE PURPOSE OF PROVIDING ROAD IMPROVEMENT AND MAINTENANCE SERVICES FOR THE FERNWOOD-COTHRIN RANCH ROAD ZONE OF BENEFIT #98114 WITHIN COUNTY SERVICE AREA #9

WHEREAS, the Board of Supervisors of the County of El Dorado formed County Service Area (CSA) No. 9 pursuant to Title 3, Division 2, Part 2, Chapter 2.2 of the California Government Code and established zones of benefit within CSA No. 9; and

WHEREAS, this Board formed the Fernwood-Cothrin Ranch Road Zone of Benefit No. 98114 on April 30, 1985 by Resolution 91-85 for the purposes of providing road improvements and maintenance services; and

WHEREAS, the extended services provided within CSA No. 9 zones are authorized services pursuant to Government Code section 25213; and

WHEREAS, California Government Code section 25215.2, together with section 25217.4, expressly authorizes a zone within a county service area to levy a special tax for road improvement and maintenance services subject to voter approval; and

WHEREAS, pursuant to California State Law, the Board of Supervisors is required to place before the electorate the approval of the measure as shown on Exhibit A before the special tax can be levied, or increased over the amount previously approved by the electorate; and

WHEREAS, the County Registrar of Voters has determined that four hundred ninty (490) registered voters reside within the zone of benefit boundaries; and

WHEREAS, such special tax amount increase shall take effect only if approved by a two-thirds majority of the voters casting a ballot in the special tax ballot proceeding; and

WHEREAS, the zone advisory committee has determined an annual special tax amount of $375.00 annually adjusted for cost of living using the Engineering News Record Construction Cost Index for each parcel of land, whether it is improved or unimproved regardless of use, is reasonable and sufficient to provide road improvement and maintenance services within the zone of benefit for the fiscal year 2027/2028, and thereafter; and

WHEREAS, if the measure as shown on Exhibit A does not pass, the existing special tax of $150.00 shall remain in effect.

NOW, THEREFORE, BE IT RESOLVED by the Board of Supervisors that:

1. The measure shown on Exhibit A shall be submitted to the voters of the Fernwood-Cothrin Ranch Road Zone of Benefit 98114 within County Service Area 9.
2. The El Dorado County Registrar of Voters shall submit the measure as shown on Exhibit A to the electorate in a mailed ballot election to be held on November 3, 2026.

3. The tax as shown on Exhibit A, if approved, shall appear as a separate item on the tax bill of each affected parcel and shall be collected at the same time and in the same manner as county ad valorem property taxes are collected as set forth in the applicable provisions of the Revenue and Taxation Code, and shall be subject to the same penalties and the same procedure and sale in case of delinquency as provided for such taxes. All laws applicable to the levy, collection, and enforcement of county property taxes shall be applicable to the tax.

4. The Director of Transportation, or designee, is delegated the authority to annually ajust the rate of the tax for cost of living using the Engineering News Record Construction Cost Index.

5. The special tax is subject to the accountability measures required by State Law, including Government Code sections 50075.1.

6. Notification shall be provided of the special tax increase, if approved, to each non-resident property owner within the zone boundaries, in accordance with the requirements of Government Code section 54930.

7. The special tax amount shown on Exhibit A shall take effect and be imposed only of it is approved by a two-thirds majority of the votes cast on the measure in the election to be conducted on November 3, 2026.

   "Shall the measure to levy an annual special tax in an amount of $375.00 with annual adjustments tied to the Engineering News Record Construction Cost Index on each parcel of land within the Fernwood-Cothrin Ranch Zone of Benefit commencing fiscal year 2027/2028 and continuing for an unlimited duration, to be used only for road improvements and maintenance and generating an annual revenue of approximately $99,000.00, to replace the current special tax of $150.00, be adopted?"

ARGUMENT IN FAVOR OF MEASURE M

No one wants to pay more property taxes. BUT - we all know that the roads in our Zone of Benefit need work and that repairs aren't keeping up. Outside of the Zone of Benefit Special Tax, there are no other public funds that can be used for our roads. This measure will increase the per-parcel road tax to $375.00 a year from $150.00 a year – the equivalent of raising our daily "road cost" to $1.03 per day from 41 cents. If passed, this will be the first time in 28 years – since 1998 – that the road tax will increase. *The California Constitution stipulates that a 2/3 majority vote is needed to pass any Special Tax.*

Currently, the special tax collects $39,600 per year from the 264 parcels within the Zone. For FY 26-27, the county fixed administrative fees ($8,490.92) and insurance ($10,846.00) total $19,336.92, leaving approximately $20,263 for road work.

These administrative costs are assessed on each County Zone of Benefit and are based on zone miles, not as a proportion of special tax revenue.
$375.00 per parcel would generate $99,000, leaving almost $80,000 available for road work and savings for contingencies.`

Over the last five years, the volunteer Zone of Benefit Advisory Committee has spearheaded four $20k chipseal projects on Ranch Gate and Cothrin Ranch Roads between Sun Ridge Ranch and Heather Lane, and has purchased multiple pallets of patch material for volunteer use. There is no reserve for emergency repairs, like a $100,000.00 culvert failure. There are many segments of our through-routes – Cothrin, Fernwood, Bullard – to fix, and there are culverts and ditches to repair.

Please vote "yes" on Measure M!

Christine Kudija, ZOB Advisory Committee

****NO ARGUMENTS AGAINST THIS MEASURE WERE SUBMITTED****

IMPARTIAL ANALYSIS OF MEASURE M

Measure M (the "Measure"), if approved by two-thirds of the voters voting thereon, would authorize the levy of an increased special tax at the rate of $375 per parcel (whether improved or unimproved) per year within the Fernwood-Cothrin Ranch Road Zone of Benefit #98114 of County Service Area 9 (the "Zone"). This Measure was placed on the ballot by the Board of Supervisors of the County of El Dorado at the request of the advisory committee for the Zone pursuant to Resolution No. 101-2026, which was passed at an official meeting of the Board of Supervisors on June 16, 2026.

If the Measure is approved, it would increase the special tax within the Zone from $150 to $375 per parcel per year. The amount of the special tax may be adjusted annually in accordance with the Engineering News Record Construction Cost Index. The special tax will be used solely for the purpose of road improvements and maintenance services within the Zone. It would become effective in Fiscal Year 2027/2028 and remain in effect until modified or repealed by the voters. The special tax authorized by this Measure is expected to generate annual revenue of approximately $99,000. If the Measure is not approved, the existing special tax of $150 per parcel per year will remain in effect.

State law requires the proceeds from the special tax be applied only to the identified purposes and that an annual report be made indicating the amount of funds collected and expended and the status of any project required or authorized to be funded by the proceeds.

The special tax authorized by this Measure will be listed as a separate item on the county property tax bill for each affected parcel of land and will be collected in the same manner as the general property tax. All laws applicable to the levy, collection, and enforcement of county property taxes, including the provisions for penalties and the procedures for sale of the property in case of delinquency, shall also apply to the special tax.

A "YES" vote is a vote to increase the annual special tax in the Fernwood-Cothrin Ranch Road Zone of Benefit from $150 to $375 per parcel, as provided in the Measure.

A "NO" vote is a vote against the increase of the special tax.

David A. Livingston
El Dorado County
County Counsel